

COMMERCIAL OFFER — BINDING TERM SHEET

btpAO AI Tender Engine — Calibration Pilot, SaaS Production & Bespoke Engineering

Ref: OFR-2026-MAN-TND-02 | **Date:** September 15, 2026 | **Status:** Governed by Signed NDA

THE CLIENT (“First Party”): MAN Enterprise SAL Offshore Sole Center, Charles Malek Avenue, Achrafieh, Beirut, Lebanon Commercial Register of Beirut: No. 1800360 <i>Represented by Mr. Thierry Abi Nader, CEO</i>	THE SOFTWARE EDITOR & PROVIDER (“Second Party”): Charbel AKL Independent Solutions Architect & Software Designer <i>Acting in his personal, individual capacity</i> 105 rue Lauriston, 75116 Paris, France
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1. PURPOSE, CALIBRATION PILOT & CONTINUATION TERMS

- Dedicated Pilot Calibration (€600 Flat Setup):** The Editor configures and calibrates the AI extraction pipeline against one (1) past tender dossier provided by MAN Enterprise, including prompt tailoring for civil-engineering templates and complex BOQ parsing. The Pilot concludes with a live evaluation demonstration.
- Upfront Payment & Non-Refundable Fee:** The €600 setup fee is due upon signature and strictly prior to any commencement of calibration work. It is strictly non-refundable once work begins, covering dedicated compute tokens and specialized onboarding time.
- Phase 2 Transition — Opt-In Only:** Following the live demo, MAN Enterprise may, at its sole discretion, activate Phase 2 by providing explicit written confirmation to the Editor (an email is sufficient). MAN Enterprise is invited to communicate its decision within five (5) business days of the demo. Absent such written confirmation, this Agreement terminates automatically at the end of the Pilot, with no further payment or obligation owed by either Party, and no Phase 2 access is provisioned. For clarity, continued access to the platform or upload of further dossiers does not, by itself, constitute activation of Phase 2.

2. AI ENGINE — CORE CAPABILITIES INCLUDED

- Adaptive Learning Loop:** The engine identifies team refinements and remembers them across future generations for continuous compounding output accuracy.
- Calibrated System Instructions:** Operating instructions are specifically customized to MAN's engineering vocabulary, tone, and BOQ conventions at inception.
- Automatic Template Continuity:** Dynamic alignment with complex branded Word templates (margins, letterhead, tables) refining progressively.
- Corpus Q&A & Knowledge Capture:** Instant natural-language querying of MAN's private project archives with explicit source citations.

3. COMMERCIAL FRAMEWORK & PRODUCTION SAAS

Engagement Phase	Pricing Model	Operational Scope & Boundaries
Phase 1: Pilot & Calibration	€600 Flat Due at signature	Ingestion of 1 historical tender dossier; calibration of technical parsing; template adaptation; live evaluation demo. Non-refundable.
Phase 2: SaaS Production	€750 / month (Billed quarterly in advance: €2,250 / quarter)	Up to 8 major tenders/month; 5 user seats; hosting, maintenance, and third-party AI compute included. 12-month initial commitment. Extra tenders: €80/unit.*

* Marginal, compute-only rate applicable beyond monthly quota. Amortizes hosting and support across included units.

- Tacit Renewal:** Upon completion of the initial 12-month period, Phase 2 automatically renews for successive 12-month terms unless terminated with a thirty (30) days' written notice.
- Price Indexation:** Upon each annual renewal referenced above, the Phase 2 monthly fee may be revised by the Editor to reflect inflation, based on the variation of the Syntec index (or, should it cease to be published, the French INSEE consumer price index) between the date of this Agreement and the relevant renewal date, capped at five percent (5%) per annum. The Editor shall notify MAN Enterprise in writing of any revised fee at least forty-five (45) days before the relevant renewal date, giving MAN Enterprise sufficient time to exercise its termination right under the Tacit Renewal clause above should it not accept the revised fee.
- Future Modules — Reserved:** The Phase 2 fee covers the platform's core tender-drafting capabilities described in Section 2, including their ongoing maintenance and incremental improvement, for the duration of this Agreement. The Editor reserves the right to develop and offer new, materially distinct feature modules in the future (e.g., new document types, new integrations, or new AI capabilities outside the scope described in Section 2); any such module, if introduced, may be offered to MAN Enterprise under a separate, additional subscription or fee, at MAN Enterprise's option. MAN Enterprise shall never be obligated to purchase any such future module to continue using the Phase 2 service described herein.
- Taxes & Wire Fees:** All amounts are net in Euros (€), exclusive of VAT (international B2B reverse charge / out of scope). Any wire transfer deductions, intermediary banking fees, or foreign withholding taxes (*retenues à la source*) shall be borne entirely by MAN Enterprise.

4. SCOPE SEPARATION: STANDARD SAAS VS. BESPOKE ENGINEERING

Service Category	Daily Rate (TJM)	Scope of Interventions
Bespoke Engineering & Development	€850 HT / day	Custom bilateral API pipelines (ERP, database extractors, proprietary workflow automations inside MAN's private tenant).
Architecture & Strategic Scoping	€1,050 HT / day	High-level architecture design, CISO security liaison, strategic prompt engineering for mega-tenders.

5. THIRD-PARTY AI APIS & METHODOLOGY

- Client Authorization & Third-Party APIS:** The engine operates via enterprise APIs (OpenAI, Anthropic, Azure) under commercial privacy terms (obligation of means). The Editor is not liable for third-party upstream outages.
- Modern AI Engineering:** The Editor uses specialized AI development assistants to build, test, and maintain the software, which MAN Enterprise expressly acknowledges and accepts.

6. INTELLECTUAL PROPERTY (100% EDITOR ASSET)

- Exclusive Editor Ownership:** The platform, source code, extraction logic, and algorithms remain the exclusive worldwide intellectual property of Charbel AKL. No transfer, sale, or work-for-hire is granted.
- Customer Rights:** MAN Enterprise receives a revocable, non-exclusive right of access. Reverse-engineering, decompiling, or utilizing the platform to train competing LLMs is strictly prohibited.
- Client Data Ownership:** MAN Enterprise retains 100% exclusive ownership over its uploaded tender documents, corporate archives, and tenant configurations.

7. LIABILITY, DEFAULT & GOVERNING LAW

- Advisory Drafting Assistant Only:** The software generates draft proposals. Qualified MAN Enterprise engineers remain exclusively responsible for verifying and approving all bids prior to formal submittal.
- Exclusion of Tender Losses:** The Editor is not liable for lost tenders, disqualified bids, commercial forfeiture, or calculation errors.
- Aggregate Financial Cap:** Liability is strictly capped at €600 during Phase 1, and limited to three (3) months of paid SaaS fees (€2,250) in Phase 2.
- Payment Default:** Invoices are payable within 15 days. Access may be suspended upon five (5) days' notice in the event of default, without releasing MAN Enterprise from its 12-month commitment.
- Assignment:** The Editor may assign or novate this Agreement to a duly incorporated entity under his ownership or control, upon prior written notice to MAN Enterprise; such assignment shall not increase MAN Enterprise's obligations nor reduce its rights under this Agreement.
- Independent Legal Review:** Each Party confirms it has had the opportunity to seek independent legal counsel prior to signing this Agreement, particularly in light of its cross-border nature (France/Lebanon).
- Governing Law & Validity:** Governed exclusively by the laws of France. Commercial Court of Paris (*Tribunal de Commerce de Paris*) holds exclusive jurisdiction. Offer valid until **October 15, 2026**.

For the Second Party (The Editor)	For the First Party (The Client)
Charbel AKL Independent AI Software Designer Date: September 15, 2026 Signature: <i>Charbel AKL</i>	MAN Enterprise SAL Offshore Represented by Mr. Thierry Abi Nader, CEO Date: _____ Signature & Company Stamp: